Welcome to the LVNA

Villager

The Newsletter of the Lakewood Village Neighborhood Association

Lakewood Village Neighborhood Association

Lakewood Village, Sunnyvale, California

August, 2002

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To subscribe to the Lakewood Village mailing list, send a blank email to: lakewoodvillage-subscribe@topica.com

No LVNA Meeting This Month

due to the "National Night Out" on August 6th

President's Column

- Craig Crawford
President, LVNA

It seems that the community of Lakewood Village is divided on the issues that are coming to light in the City's survey of Lakewood Village residents and the resulting pilot program about code enforcement. There was an article in last month's *Villager* that was critical of this program. I think that the tone of the article was "leave me alone, I can do what I want to on my property, so butt out". I can understand this attitude, and I'd be all for it if this was a perfect world.

Let me share some experiences that I have had to respond to from phone calls and meetings with residents of Lakewood who seek remedies for problems that concern them and their neighbors:

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- One resident complained about the house next door. It's a rental, and it is subdivided so that individual rooms can be sublet. The rooms have plywood dviders in the middle so that two or more people rent each room. She has counted at least 12 people living in the house. She can't communicate with the renters due to language differences, so talking to them is useless. The toilet must be broken because the excrement and urine is captured in 5 gallon buckets and placed at the curb, smelling up the entire neighborhood. She wants to know what to do about this. Should these people be left alone?

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Welcome, new advertiser!



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- Another resident has a problem with rats. This resident runs a day care center in her home. She shares a common fence with a next-door neighbor who piles garbage in his back yard. The piles are providing a habitat for rats, and the rats come over her fence into her yard. The piles are in the back yard out of sight from the front sidewalk. Should the resident with the garbage be left alone?

- Another resident complains that the neighbors behind her have roosters that wake her up in the middle of the night, and asks what can she do about this. Should the chicken people be left alone?

- I have received so many calls about barking dogs in the middle of the night that I can't count them all. Should these people be left alone also?

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In a perfect world everyone would take care of their house and would not make a hardship on their neighbors or the neighborhood. But this is not a perfect world. We come from many different races and ethnic backgrounds and have varying expectations of how to care for property and how to live in close proximity to each other.

There has to be a baseline, a level, a standard that applies to the entire neighborhood. This is why we are having a pilot program in the neighborhood: to develop a baseline standard of living conditions that will apply to all residents with all of variety of needs and concerns that are unique to Lakewood. Do you want people to have a standard, or do you think it should be a free-for-all? I am in favor of a standard, but I am only one person of the thousands that call Lakewood Village their home. Let the Editor or me know what you think, and you will be heard. ■



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- Editor

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Back from Vacation

- Craig Crawford
President, LVNA

It's wonderful to leave for a vacation, but it's nicer to come back. My wife and I went to the United Kingdom for three weeks. This was our first time in the island country. Californians consider something as being old if it is from the early 1900's, but in the U.K., one thousand years is just starting to get old. My favorite activity of the vacation was visiting castles.

I could not help but to compare the USA to England, and here are some of my thoughts. We are truly blessed to live in the Bay Area for several reasons.

- The weather: We have the greatest climate in the entire world. In England it is almost always gloomy and overcast, and rain is always a possibility. I did get accustomed to the lack of sun after awhile, but only because I remembered that I would be back in the land of the sun very soon.

- The food: I was anxious to try the English and Scottish food, but after a few days I realized that the food is bland and lacks the spices that I have grown to love. How do they eat that food day in and day out, I will never know. American food is taken from all over the world. We have chosen the best foods from all over the world and have incorporated them into our diets. Our restaurants are second to none in the variety and quality.

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- There are other reasons why we are the best, such as our low taxes compared to the U.K. Gasoline prices of $5.00 per gallon are not uncommon. Why it so expensive is that the taxes that are needed to support the socialist nature of their country. Medical treatment is free, but many people in the country don't like it one bit. It takes a long time to get treatment, and once you are able to get it, the quality of treatment is lacking. I read in the newspapers that heart patients routinely wait 18 months for major work. Would you like this for your elderly parents or other family members? Deaths happening in the waiting period are common. Also there is an 18.5% tax built into all goods purchased, while we complain about the 8.75% sales tax that we pay.

All together the vacation was a good experience the country is beautiful and the people friendly. I have gained an understanding and an appreciation for our country and the Bay area. We are the best! ■

Progress on the LVNA Web Site

- Editor

The LVNA Web Site is currently under construction and should become available for general access in September.

During construction, I'd like to get a few volunteers to help test the site and provide feedback. All you need is a computer, an Internet connection, reasonable familiarity with web sites in general, and a little time to try it out and send me email about it. If you're interested in being a "beta tester", please contact me at lvna_editor@magicaldesk.com. ■

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City of Sunnyvale Privacy Study

- Diana Perkins
City of Sunnyvale Planning Division

The City is studying privacy issues between residential and non-residential uses. Staff is evaluating whether the current zoning code requirements for increased setbacks, landscape buffers and 6-foot high masonry walls adequately protect against infringement of privacy of adjacent residents. This study will determine whether modified requirements are appropriate to protect privacy.

The City Council has directed staff to study the following issues for the purpose of this study:

- Line of sight from windows of non-residential development
- Use of exterior mounted security cameras
- Height of masonry walls along property lines
- Security lighting levels
- Noticing neighborhoods of commercial/industrial projects
- Trash enclosure locations

This item is scheduled to be heard by the Planning Commission on September 23, 2002 at 8:00 p.m. and by the City Council on October 8, 2002 at 7:30 p.m.

Please contact Diana Perkins in the Planning Division at dperkins@ci.sunnyvale.ca.us or (408) 730-7455 for any questions, comments, or suggestions for this study. ■

From the Editor's Desk

- Editor

Keep those cards and letters coming…

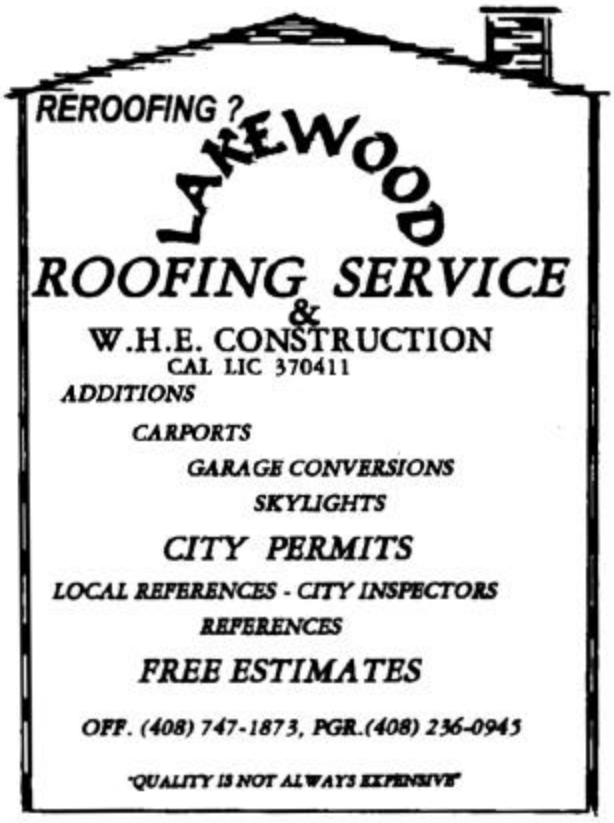
It's great that we're receiving "Letters to the Editor" now. Keep the letters coming, but please make them brief and to the point.

Do you want to be a Villager Reporter?

I'm looking for people to file reports and take photographs of neighborhood-related events and activities like the National Night Out and the Picnic. Contact me if you're interested!

To contact the Editor of The Villager…

Send your letters to the editor, articles, comments, and corrections by email to lvna_editor@magicaldesk.com, by FAX to (408) 738-2821, or by postal mail to LVNA Villager, c/o Brian Smithson, 1104 Burntwood Court, Sunnyvale CA 94089. ■





Letters to the LVNA

- Editor

Names have been withheld unless I have been given explicit permission to print them.

6/29/2002

Dear Editor,

In spite of the fact that The City of Sunnyvale has ordinances dealing with dogs/leash/waste, many of our neighbors continue to allow their pets to roam free and defecate wherever. Not only is this in violation of the ordinances, it also shows a complete disregard for the rights of all of us. It would take only a small effort on the part of the guilty pet owners to remove them from the list of slovenly, thoughtless neighbors that make our neighborhood less then what it can be.

Editor's note: If you haven't done this already, try speaking with the offending neighbors, and if that doesn't work, try calling Sunnyvale Animal Control at (408) 730-7178. □

7/10/2002

Dear Editor,

I'd like to take a stand for a good friend of mine! You could say, more like a father. For years now he has been the target of certain of his neighbors that really have nothing better to do, then spy and tattle on him to the LVNA and Sunnyvale Police Department to see if he -- oh my gosh -- has 2 cars on his driveway and appears to be fixing one of them. It's just plain harassment! The guy is 80 years old and is trying to enjoy his days. He has a true enjoyment on tinkering with cars! Not just his, but his neighbors, their friends, friends of their friends. He has a rough kind of exterior, which makes him whom he is, but inside there is nothing that that man wouldn't do for us. He is a gentle as a teddy bear.

I have lived in the Village with my family for 45 years, fairly long-time residents. My family lives on Manzano, which is the far backside of Fairwood. Our friend, who is also a long time resident, seems to be the "target" of what appears to be "grumpy old man with nothing better to do syndrome". I won't get into the details too much, but it just breaks my heart that this gentleman has to live his life out with

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fear of being "caught", doing something that doesn't hurt ANYONE.

His house is has one of the most kept up yards, fences, is kept painted, etc. I really don't understand why the association doesn't just go and take a glance on the end of Manzano at the head of the park, where there have been two or three not-too-nice-looking tattered trucks with camper shells on them just sitting there day in and day out. I see them, because I live down the street. But there they sit. I'm afraid to let my daughter walk to the park by herself.

The police have been called on him so many different times. Now I could see if there was an entire driveway full of leaking smelly, oily, old broken down cars, day in and day out, yeah I could see that, but this is not the case! I would bank the condition of his house against anyone else's in the village. He's tidy, a veteran of the war and has been leaving in the village for as long as we have, maybe even longer.

It's very hurtful and evil. Just leave him alone. You all would be surprised just how many times the police have been called out to his house — because a report has been filed that "he has his head under a car hood again", helping people out with their car problems, and not to mention he basically does it for the mere enjoyment of it. He's not making a penny! I have even heard a rumor that city officials have had their private vehicles worked on by this "evil-dirty-no-good-mechanic".

Isn't there enough going on in our society and world today that people cannot enjoy the fruits of their labor without the constant fear of harassment?

Editor's note: If this gentleman is violating a municipal code, then Sunnyvale Public Safety is simply doing their job by responding to a complaint from a neighbor. If they were to make exceptions for him, where should the exceptions stop? (See this month's President's Column about this issue). Perhaps the best way is for you to speak with the neighbors who file the complaints and ask them to stop. □

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7/23/2002

Dear Editor,

Boom! Boom! Boom! Thump! Thump! Thump!

Some call it music, some call it loud music, and some call it a cultural experience. I say call it for what it is: gratuitous aggression. Whether the source is from one's driveway, bedroom or moving car it's nothing more than a statement saying, "I can disturb your peace, I can annoy you, I can announce to the world that I do as I please". Gratuitous Aggression.

I'm speaking of the insanely loud music that comes from certain individual's cars, whether parked or moving or even from the homes of individuals or certain local bars. It's all the same thing: "I can disturb you if I want and what are you going to do about it?".

Fortunately, this is a very small percentage of individuals who reside in the Lakewood area, but unfortunately, even this small percentage can affect nearly everyone whose path they cross.

Wouldn't it be nice if the vast majority of people, those who appreciate and savor the peace, tranquility and quietness of a normal neighborhood, could come together and in one massive movement of overwhelming strength and power to silence these aggressively rude and obnoxious wanna-be gangsters and their aggressively loud stereo and boom boxes, once and for all?

Stop this insane aggressive behavior in our neighborhoods. Among the early signs of neighborhood decay are graffiti and loud car stereo boom boxes. The police can help put a stop to this aggressive behavior, but it's up to us, the people, to help take back our neighborhoods from these bozos of boom.

What can you do? Adopt a policy of zero tolerance. Either politely ask the individuals to turn down their music, or in the case of a moving vehicle, report it to the Sunnyvale Public Safety. If they receive enough calls from the same locale then they will do something about it. It is not legal behavior to disturb the neighborhood and they will be cited.

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▶ *continued from previous column*

Are you fed up with the territorial bellowing of hyenas on the Serengeti? Well then, stop the racket! Call the police and report the make of car, driver description and the license plate number. This may also have a secondary effect of reducing the other unnecessary form of aggressive behavior: burning rubber.

It's our neighborhood, not theirs to do with as they please. We pay plenty in taxes, work hard to make our homes presentable and comfortable, and we appreciate quiet! Why let a few take away our peace and serenity because they think they're too tough to be challenged?

Just do it!

Editor's note: If you're interested in the laws pertaining to loud music and engine noise from motor vehicles, see the article "Vehicle Noise Codes" in this issue of The Villager. □

8/3/2002

Dear Editor,

The City of Sunnyvale has started a three-block pilot study in Lakewood Village to help staff estimate the cost of raising Neighborhood Preservation services levels in Lakewood Village to match service levels in Sunnyvale south of the Caltrain tracks. That's the good news. The bad news is they are doing it by taking half of time of Rich Gutierrez (Lakewood Village's Neighborhood Preservation Specialist) without backfilling the position.

Because Rich had more than he could do when he was full time, I was concerned that the other 60 blocks in Lakewood Village would

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suffer from lack of Neighborhood Preservation resources. Therefore I have been talking to several Sunnyvale City Council Members about backfilling Rich's position. As it turns out there is a Sunnyvale Neighborhood Preservation Specialist who is currently working half time in a different department. From what I've been told, the City Council is willing to backfill Rich's position if it is the will of the neighborhood.

Please let Craig Crawford, President of LVNA (736-7371 or iamcraw@earthlink.net), or Brian Smithson, LVNA Newsletter Editor, (738-5939 or lvna_editor@magicaldesk.com) know what you think. Even if you've let them know your general feelings in the past, it's important to let them know how you feel on this particular issue.

Thom Mayer
thommayer@aol.com ■

This Month in Lakewood History…

- Brian Smithson

44 years ago: The first advertisements were placed in *The Villager*. They were hand-drawn!

39 years ago: In 1963, the Lakewood Village residents petitioned the City of Sunnyvale to build Lakewood Park. The park was dedicated in October, 1964.

Share <u>your</u> history!

Are you a long-time resident of Lakewood Village? Do you have old photographs, real estate brochures, newspaper clippings, or old LVRA/LVNA newsletters sitting in a box in your garage? I'm interested in putting together a year-by-year history of Lakewood Village, and your historical materials would be very helpful. I'd be happy to pick up items, copy them, and return the originals. Call me at 738-5939 or email lvna_editor@magicaldesk.com. ■

LVNA Board Meetings

- Editor

Any Lakewood Village resident, not just LVNA Board members, can attend the LVNA Board Meetings. If you are interested in attending an LVNA Board Meeting, contact Craig Crawford at 736-7371 or imcraw@earthlink.net. ■

From the Police Blotter: Lakewood Village and nearby areas

- Courtesy of the Sunnyvale Department of Public Safety and Craig Crawford



7/23 Lakebird – Corporal injury to spouse

7/29 Blazingwood – possession of controlled substance, violation of probation

7/29 El Camino at the El Pollo Loco restaurant – person entered the rear door of the El Pollo Loco with a handgun. He demanded money from the cash drawers. The frightened employees filled a bag with $1077. The suspect took the bag of money and fled with two other individuals.

President's note:

Things are quiet in Lakewood for the week from which I took this report. Lots of drug arrests in Sunnyvale, but I believe that this is also true for other cities in the area.

Sunnyvale suffered a black eye when a Public Safety officer was arrested for protecting the people that he was sworn to arrest. This is very strange and troubling, to say the least. I encourage you to support Public Safety in their time of need. Until next time, stay safe.

As always, if you see suspicious activity or are aware of any crime, no matter how minor, please report it to Sunnyvale's Department of Public Safety. For emergencies, call 911; for non-emergencies, call 730-7100. ■

What was THAT!?

- Editor

On Saturday, July 22nd, you may have heard your windows and doors rattle as the result of a very loud "boom". That boom came from the Air Show at Moffett Field. According to organizers, shock waves from a couple of simulated bombs were strong enough to have cracked the windows of an old air-traffic control tower at Moffett Field and prompted noise complaints from residents in Mountain View and Menlo Park. Two residents called Mountain View police to report broken windows of their own, police said. That portion of the show was canceled Sunday. ■

Newsletter Walkers Needed

- Elena Anderson

Your LVNA is in need of a few good folks to help get the message out. It takes only a few minutes a month, gets you out of the house into the fresh air, and gives you an opportunity to meet some of your neighbors. If you can devote some time as a Newsletter Walker, please call Elena at 745-6028. It's a great way to make a contribution to the Neighborhood! ■



3-Day Walk Traverses Lakewood Village

- Editor

On July 12th, San Jose-to-San Francisco Avon Breast Cancer 3-Day Walk participants walked through Lakewood Village. The 3-day Walk started at the Santa Clara Convention Center, proceeded west on Tasman Drive to Calabazas Creek, south along the levy, and then into Lakewood Village. I'm not sure of their exact route, but I think that they walked down the greenbelt on the Fairwood side, over the pedestrian overpass (which is where I saw them), through the greenbelt on the Lakewood side, and then into the Orchard Gardens neighborhood. On the first day, they walked all the way to Bay Meadows Racetrack, where they camped for the night. By the second night, they were camping at Skyline College. The third day took them the rest of way to Marina Green in San Francisco.

If you're interested in finding out more about the 3-Day Walk in the Bay Area or in any of the other twelve cities in which it is held, visit http://www.bethepeople.com/avon_3days/landing_3day.htm. For more specific information about the San Jose-to-San Francisco 3-Day Walk, visit http://www.sf3day.org/. ■

Vehicle Noise Codes

- Brian Smithson

Several residents have expressed concern about the noise levels emanating from vehicles in our neighborhood, and they have wondered what can be done about it. This made me curious about what laws are on the books to deal with such noise. I first looked at the Sunnyvale Municipal Code, and it doesn't have any laws about vehicle noise. Then I looked at the California Vehicle Code, and it has seven applicable sections: 27007, 27200, 27201, 27202, 27204, 27206, and 27207. I won't print the full text of the code here, but here is the bottom line:

- 27007 sets the maximum noise for audio systems in vehicles, and it states that you cannot operate "any sound amplification system which can be heard outside of the vehicle from 50 or more feet".
- 27200 sets the conditions for measuring engine and exhaust noise for vehicles. Measurements are taken from 50 feet away on the centerline of travel (i.e., in front of and behind the vehicle) in absolute decibels (dbA, a measurement of sound pressure).
- The remaining codes set the maximum acceptable noise levels for various types and ages of vehicles, ranging from 80dbA to 92dbA. Older vehicles are typically allowed to make more noise than newer vehicles of the same type.

As points of reference, 80dbA is typical for a ringing telephone, 85dbA is typical for a noisy restaurant, 90dbA is typical for a lawn mower, and 95dbA is typical for a power saw. ■

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LVNA Meeting

- Editor

There will be no LVNA meeting in August, due to the National Night Out on August 6th. ■

LVNA Officials

President	Craig Crawford iamcraw@earthlink.net	736-7371
1st Vice President	Sarah Daugherty sarah@matteoni.com	734-0785
2nd Vice President	Elena Anderson anderson@elmetek.com	745-6028
Secretary	Tom Freeman tfreeman@quickturn.com	734-5769
Treasurer	Art Daugherty * sarah@matteoni.com	734-0785
Newsletter Editor	Brian Smithson lvna_editor@magicaldesk.com	738-5939
Ad/Production Coordinator	Mel Anderson anderson@elmetek.com	745-6028

- ***newly elected***

Advertise Your Business in *The Villager*!

- Editor

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Important Phone Numbers

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Public Safety – Non-emergency		**730-7100**
Parks and Maintenance		730-7506
Animal Control		730-7178
Code Enforcement		730-7610
Crime Prevention		730-7140
Hazardous Materials		730-7212
Housing Inspection		730-7610
Lakewood Pool		734-8190
Street Light Repairs		730-7510
Shopping Cart Retrieval		730-7510
NRO	Dave Falletta	730-7148
Vehicle Abatement	Sally Personett	730-7104
Neighborhood Preservation	Rich Gutierrez	730-7447

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Internet Links

Lakewood Village email list	http://www.topica.com/lists/lakewoodvillage
City of Sunnyvale	http://www.ci.sunnyvale.ca.us/
County of Santa Clara	http://www.santaclaracounty.org/
State of California	http://www.ca.gov/
Lakewood School	http://www.sesd.org/Schools/Lakewood/index.html
Fairwood School	http://www.sesd.org/Schools/Fairwood/index.html
Columbia Middle School	http://www.sesd.org/Schools/Columbia_Middle/
Fremont High School	http://www.fhs.fuhsd.org/

Calendar of Upcoming Events

What	Where	When
Compost Workshop	Sunnyvale Community Center	8/10/02, 10am-noon
Household Hazardous Waste Drop-off	164 Carl Rd. Transfer Station	8/17/02, 8am-1pm
Bookmobile	Fairwood School	8/20/02, 2:15-3pm
Bookmobile	Lakewood School	8/22/02, 2-3pm

$100 Reward

- Lois Burkhardt

$100 reward for the return of "Coco", a small green parrot, lost for 1½ months. Bless you and thank you if you saved his life. I've had him for 10 years and I need him home. Call Lois at 738-1217 (home) or 245-0182 (work on Wed. through Fri.). Thank you.





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